

M/S Shivam Rice Mill v. U.P. Electricity Regulatory Commission

Allahabad High Court · Division Bench · 9 July 2025 · 2025:AHC:108625-DB · WRIT - C No. 18388 of 2025 · **Writ disposed; respondent no.4 to consider the 6.5(b) complaint within four weeks.**

HEADNOTE

A writ seeking consideration of a consumer complaint under clause 6.5(b) of the U.P. Electricity Supply Code, 2005 was disposed of by directing the concerned respondent to consider the complaint and inform the petitioner of the decision within four weeks of communication of the order and the complaint.

FACTUAL SUMMARY

The petitioner, M/S Shivam Rice Mill, dispatched a complaint by post on 28 March 2025 to respondent no.4 under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. It approached the Allahabad High Court for a direction that the said respondent consider and deal with that complaint. Counsel for respondents 2, 3 and 4 submitted that respondent no.4 would deal with the complaint and sought four weeks.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

complaint-handling

HOLDING

Where a consumer has dispatched a complaint under clause 6.5(b), the writ court may dispose of the petition by directing the concerned respondent to consider the complaint and inform the petitioner of the decision within a fixed time of communication of the order and complaint, without deciding the merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.5(B) COMPLAINT

Respondent no.4 was directed to consider the complaint and inform the petitioner of the decision; the Court did not adjudicate it. ¶ 1